Definitions, unless the context otherwise requires, apply in these by-laws and, as amended, in all other by-laws ("by-laws") of Animat Habitat ("OAFA") and are typewritten hereunder to serve the board of directors of OAFA ("board") and the individual members of the board ("directors") with respect to the original articles of incorporation of OAFA ("Articles"); the Canada Not-for-profit Corporations Act S.C. 2009, c.23, and, as amended, any statute or regulations that may be substituted ("Act"); and, the individual, body corporate, partnership, trust and/or unincorporated organization ("person").

In the interpretation of these by-laws, words in the singular may include the plural and vice-versa.

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BY-LAWS

PRACTICES

1.01 EXECUTION OF DOCUMENTS

Deeds, transfers, assignments, contracts, obligations and other instruments in writing requiring execution by OAFA may be signed by any of its directors. In addition, the board may from time to time direct the manner in which and the person by whom a particular document or type of document shall be executed.

Any person authorized to sign any document may affix the corporate seal to the document and may certify a copy of any instrument, resolution, by-law or other document of OAFA to be a true copy thereof.

1.02 FINANCIAL YEAR END
The financial year end of OAFA shall be determined by the board.

1.03 ANNUAL FINANCIAL STATEMENTS
OAFA may, instead of sending copies of the annual financial statements and other documents referred to in subsection 172(1) of Act to the members, publish a notice to its members stating that the annual financial statements and documents provided in subsection 172(1) are available at the registered office of OAFA and any member may, on request, obtain a copy at the registered office or by electronic mail.

MEMBERS

2.01 MEMBERSHIP CONDITIONS
Certificate of membership shall serve as notice of term and qualification(s) of membership; shall be given with the expectation that the member contribute respective expertise in one or more meeting(s) of members or to OAFA in another capacity; and, shall not renew if qualification(s) are not met as determined by the board.

2.02 DISCIPLINE OF MEMBERS
The board shall have authority to suspend or expel any member from OAFA for any one or more of the following grounds: violating any provision of Articles, by-laws or written policies of OAFA; carrying out any conduct which may be detrimental to OAFA as determined by the board; or, for any reason that the board in its sole and absolute discretion considers to be reasonable, having regard to the purpose of OAFA.

In the event that the board determines that a member should be expelled or suspended from membership in OAFA, President, or such other director as may be designated by the board, shall provide fourteen (14) days notice of suspension or expulsion to the member and shall provide reasons for the proposed suspension or expulsion. The member may make written submissions to President, or such other director as may be designated by the board, in response to the notice received

within such fourteen (14) day period. In the event that no written submissions are received, President, or such other director as may be designated by the board, may proceed to notify the member that the member is suspended or expelled from membership in OAFA. If written submissions are received in accordance with this section, the board will consider such submissions in arriving at a final decision and shall notify the member concerning such final decision within a further fourteen (14) days from the date of receipt of the submissions. The board's decision shall be final and binding on the member, without any further right of appeal.

2.03 TERMINATION OF MEMBERSHIP

A membership in OAFA is terminated when the earlier of the term of membership expires without renewal; the member resigns by delivering a written resignation to Chair of the board in which case such resignation shall be effective on the date specified in the resignation; the member fails to meet qualification(s) for membership described in section 2.01 of these by-laws; the member is expelled in accordance with section 2.02 or the membership is otherwise terminated in accordance with the by-laws or Articles; the member passes, or, in the case of a member that is a corporation, the corporation is dissolved; or, OAFA is liquidated or dissolved under Act. Subject to Articles, upon any termination of membership, the rights of the member, including any rights in the property of OAFA, cease to exist.

MEETINGS OF MEMBERS

3.01 CALLING OF MEETING

President, Chair of the board or any two (2) directors at any time, may call a meeting of members in accordance with Section 167 of Act, on written requisition of member(s) carrying not less than five (5) percent of the voting rights. If the board do not call a meeting within twenty-eight (28) days of receiving the requisition, any member who signed the requisition may call the meeting.

3.02 NOTICE OF MEETING

Notice of the time and place of a meeting of the members shall be given to each member entitled to vote at the meeting during a period of seven (7) to twenty-eight (28) days before the time when the meeting is to be held. Pursuant to section 171(1) of Act, a member entitled to vote at a meeting of the members, if absent, may vote by electronic ballot provided by OAFA.

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3.03 VOTES TO GOVERN
At every meeting of the members, every question shall be decided by a majority of the votes cast on the question. In case of an equality of votes, the chair of the meeting shall have a second or casting vote.

3.04 QUORUM
A quorum at any meeting of the members shall be two-thirds (2 per 3) of the members entitled to vote at the meeting. If a quorum is present at the opening of a meeting of the members, the members present may proceed with the business of the meeting even if a quorum is not present throughout the meeting.

3.05 CHAIR OF THE MEETING
In the event that Chair of the board and President are absent, the members in attendance who are entitled to vote shall choose one of their number to chair the meeting.

DIRECTORS

4.01 ELECTION AND TERM
Subject to Articles, the members will elect the director(s) at the inaugural meeting of the members and at each succeeding year-end meeting in a year that an election of director(s) is called. Directors hold office indefinitely, or until an elected term expires at the open of an annual meeting of the members in a year that an election of director(s) is called by President, Chair of the board or any two (2) directors at any time.

4.02 DESCRIPTION OF OFFICES
Unless otherwise specified by the board, which may, subject to Act, modify, restrict or supplement powers and responsibilities, the appointed directors of OAFA shall have the following powers and responsibilities associated with their positions: President shall be the executive director and CEO, subject to the authority of the board, with responsibility for implementing strategic plans and policies of OAFA and with supervision of all affairs of OAFA, including powers and responsibilities of vacant roles; Chair of the board, if any, shall be the casting director, CCO and, when present, preside at all meetings of the board and of the members; and, Secretary, if any, shall be the director of operations, COO and the custodian of all books, papers, records, documents and other instruments belonging to OAFA, including its corporate seal, and attend all meetings of the board and of the members to enter, or

cause to be entered, in the minute book of OAFA, minutes of all proceedings at such meetings and give, or cause to be given, notices to directors, members and the public accountant.

Other roles are as follows: Art director (CDO); Technical director (CTO); Treasurer (CFO); Vice-president (CSO); and each, if appointed, shall hold an office with powers and responsibilities to be defined and amended hereto. All officers shall be directors, and two or more offices may be held by the same person.

4.03 COMMITTEES

The board may from time to time appoint any committee or other advisory body, as it deems necessary or appropriate for such purposes and, subject to Act, with such powers as the board shall see fit. Any such committee may formulate its own rules of procedure, subject to such regulations or directions as the board may make from time to time. Any committee member may be removed by resolution of the board of directors.

4.04 VACANCY IN OFFICE

In the absence of a written agreement to the contrary, the board may remove, whether for cause or without cause, any director of OAFA. Unless so removed, a director shall hold office until the earlier of a successor being appointed in accordance with Section 2.02, the director's resignation, the director ceasing to be a director or the director's death.

MEETINGS OF DIRECTORS

5.01 CALLING OF MEETING

Meetings of the board may be called by President, Chair of the board or any two (2) directors at any time; provided that the inaugural meeting following incorporation may be called by any director or incorporator.

5.02 NOTICE OF MEETING

Notice of the time and place of a meeting of the board shall be given to each director of OAFA not less than seven (7) days before the time when the meeting is to be held. Notice of a meeting shall not be necessary if all directors are present, and none objects to the holding of the meeting, or if those absent have waived notice of or have otherwise signified their consent to the holding of such meeting. Notice of an adjourned meeting is not required if the time and place of the adjourned meeting is announced at the

original meeting. No notice of meeting need specify the purpose or the business to be transacted at the meeting except that notice of a meeting of the board shall specify any matter referred to in subsection 138(2) of Act that is to be dealt with at the meeting.

5.03 VOTES TO GOVERN

At every meeting of the board, every question shall be decided by a resolution passed by not less than two-thirds (2 per 3) of the votes cast on the question. In case of an undecided vote, the chair of the meeting shall have a second or casting vote.

NOTICES

6.01 METHOD OF GIVING NOTICE

Any telephonic, electronic, printed or typewritten document in accordance with Part 17 of Act, or other communication facility ("notice") may be delivered in person or sent to such person's recorded address for that purpose ("given") and notice so delivered shall be deemed to have been given when it is delivered personally or to the recorded address as aforesaid; or, notice so sent by any means of transmitted or recorded communication shall be deemed to have been given when dispatched or delivered to the appropriate communication company or agency or its representative for dispatch.

6.02 OMISSIONS AND ERRORS

The accidental omission to give any notice to any director, member or public accountant, or the non-receipt of any notice by any such person where OAFA has provided notice in accordance with the by-laws or any error in any notice not affecting its substance shall not invalidate any action taken at any meeting to which the notice pertained or otherwise founded on such notice.

MECHANISMS

7.01 RESOLUTION

In the event that a dispute among directors, members or volunteers of OAFA is resolved as much as possible in private meetings between the parties and may not be resolved, the process is to be resolved in accordance with binding informal arbitration as follows; both parties to the dispute each pick a mediator; these mediators then appoint a third mediator, and that mediator spends three (3) hours reviewing memos written by both parties and decides who's right; the award shall be final.

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The number of mediators may be reduced from three to one or two upon agreement of the parties. All costs of the mediator appointed in accordance with this section shall be borne equally by the parties to the dispute.

The invalidity or unenforceability of any provision of these by-laws shall not affect the validity or enforceability of the remaining provisions.

* More information at animathabitat.org/societas/by-laws/.